



Opal Healthcare – Bethel Aged Care

MN-15019

Phase 1 Determination

Acquisition may be put into effect

12 June 2026

1. Determination and statement of reasons

Notified acquisition	DPG Services Pty Ltd and OHCA Property Holdings Pty Limited (being related bodies corporate, and together referred to as Opal Healthcare) propose to acquire the land, assets and business comprising the following approved aged care facilities operated by Java Dale Pty Ltd (Bethel Aged Care) in Melbourne: - the Bethel Aged Care residential aged care home, an approved residential care facility with 121 beds, located at 600 Plenty Road, Mill Park, Victoria (Mill Park Community); and - Anzac Lodge, a residential aged care home, an approved residential care facility also with 121 beds, located at 2/12 Anzac Avenue, Coburg North, Victoria (Coburg North Community) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Opal Healthcare, owns and operates 146 residential aged care facilities across New South Wales, Victoria, Queensland, Western Australia and South Australia. The target, Bethel Aged Care, owns and operates the residential aged care facilities Mill Park Community and Coburg North Community.
Overlap and relationship between the parties	Opal Healthcare and Bethel Aged Care overlap in the supply of residential aged care facilities in Melbourne.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties and publicly available information. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. • The aggregation arising from the Acquisition and previous acquisitions by Opal Healthcare within the local areas of Mill

	Park Community and Coburg North Community in the last three years is significant at a local level. • However, Opal Healthcare will likely continue to face competition from alternative suppliers of residential aged care facilities in the local areas surrounding Mill Park Community and Coburg North Community.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**